

SUPERSEDED — DO NOT USE

This agreement was replaced in its entirety by the Master Service Agreement between the same parties dated March 15, 2026. Retained for file reference only.

Mill River Mechanical Co. LLC

112 Pleasant Street, Easthampton, MA 01027
Phone 413-555-0100 | millrivermech@gmail.com

Service Agreement
Agreement No. SA-2025-011
Effective November 2, 2025

SERVICE AGREEMENT

Preventive Maintenance — 240 Ferry Street, Building 1

This Service Agreement (the “Agreement”) is made as of **November 2, 2025** (the “Effective Date”) between **Mill River Mechanical Co. LLC**, a Massachusetts limited liability company of 112 Pleasant Street, Easthampton, Massachusetts 01027 (the “Contractor”), and **Northgate Mill Properties LLC**, a Massachusetts limited liability company of 240 Ferry Street, Easthampton, Massachusetts 01027 (the “Owner”).

1. Term

This Agreement begins November 2, 2025 and continues for twelve (12) months, expiring **November 1, 2026**. Either Party may decline to renew by giving the other written notice at least thirty (30) days before expiration.

2. Scope of Services

2.1 The Contractor shall provide preventive maintenance of the heating, cooling and plumbing systems serving **Building 1 only** at 240 Ferry Street, Easthampton, Massachusetts, including the residential units and common areas of that building. Building 2 is not covered by this Agreement.

2.2 The services covered by the monthly fee are:

- Seasonal boiler startup in the fall and boiler shutdown in the spring.
- Filter changes on covered air handling equipment on the manufacturer's recommended interval.
- Inspection and service of domestic hot water production and distribution.
- Routine plumbing service in the units and common areas of Building 1.
- Service calls scheduled as requested by the Owner.

2.3 This Agreement does **not** include a standing weekly service visit. Service visits are scheduled individually at the Owner's request or as required for the seasonal work listed above.

2.4 Replacement of major equipment, system redesign, and damage from fire, flood, freezing or misuse are excluded and will be quoted separately.

3. Emergency Response

The Contractor shall respond on site within twenty-four (24) hours of the Owner's call for any condition, year round, and shall maintain a telephone number answered after hours.

4. Fees and Payment

4.1 The Owner shall pay the Contractor **\$4,200.00 per month**, invoiced monthly in advance. Payment terms are **Net 15**.

4.2 Work outside the scope of Section 2 is billed as follows:

Item	Rate
Labor — regular hours	\$125.00 per hour
Labor — after hours, weekends and holidays	\$185.00 per hour
Materials and parts	Cost plus 15%

4.3 Balances unpaid more than thirty (30) days after the invoice date accrue a late charge of one and one-half percent (1.5%) per month.

5. Insurance and Indemnification

The Contractor shall maintain commercial general liability insurance of not less than \$1,000,000 per occurrence and workers' compensation insurance as required by Massachusetts statute, and shall furnish certificates on request. Each Party shall indemnify the other against claims for bodily injury or property damage to the extent caused by its own negligent acts or omissions.

6. Termination

Either Party may terminate this Agreement for material breach on thirty (30) days written notice if the breach is not cured within that period. On termination the Owner shall pay for services performed through the termination date.

7. General

This Agreement is governed by the laws of the Commonwealth of Massachusetts. It may be amended only in writing signed by both Parties, and is the entire agreement between the Parties concerning its subject matter.

The Parties have executed this Agreement as of the Effective Date written above.

CONTRACTOR — MILL RIVER MECHANICAL CO. LLC

Signature

Dana Mercier
Member

Date

November 2, 2025

OWNER — NORTHGATE MILL PROPERTIES LLC

Signature

Karen Vostok
Managing Member

Date

November 2, 2025

File note: Superseded by the Master Service Agreement dated March 15, 2026 (Agreement No. MSA-2026-004), which expanded coverage to Buildings 1 and 2, added the standing Thursday service visit, and set the monthly fee at \$4,850. No services are billed under this Agreement on or after March 15, 2026.